

Ratan Industries Limited v. Dakshinanchal Vidyut Vitran Nigam Limited And Another

High Court of Judicature at Allahabad · Division Bench · 27 July 2026 · Writ - C No. 22524 of 2024 · **Writ listed; Clause 4.49 not decided; last listed 10.08.2026.**

HEADNOTE

A consumer's writ against Dakshinanchal Vidyut Vitran Nigam Limited, in which counsel was given liberty to place judgments on Clause 4.49 of the Electricity Supply Code, 2005, was kept pending. After holding that the matter required consideration and directing exchange of affidavits, the Allahabad High Court listed the petition from date to date, took it out of the top-ten list, and last listed it for 10 August 2026. Construction of Clause 4.49 and the merits of the writ were not decided.

FACTUAL SUMMARY

Ratan Industries Limited filed Writ-C No. 22524 of 2024 against Dakshinanchal Vidyut Vitran Nigam Limited and another. The Division Bench directed the licensee to take instructions (31 July 2024) and granted the petitioner liberty to place judgments on Clause 4.49 of the Electricity Supply Code, 2005 (13 September 2024). On 21 October 2024 the Court held that the writ required consideration and directed exchange of affidavits. Counter and rejoinder of respondent No. 1 were taken on record on 2 December 2024; those of respondent No. 2 on 27 February 2025, with notes of argument directed. The petition was then adjourned from date to date, taken out of the top-ten list on 10 November 2025, and last listed for 10 August 2026 on the petitioner's prayer. The orders do not recite the connection, bill, or the precise Clause 4.49 dispute.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

listing after liberty to cite Clause 4.49

HOLDING

Without construing Clause 4.49 of the Electricity Supply Code, 2005 or deciding the writ, the Court granted the petitioner liberty to place judgments on that clause, later recorded that the matter required consideration, directed exchange of affidavits, took counters and rejoinders on record, directed notes of argument, and listed the petition from date to date. The last order of 27 July 2026 listed the matter for 10 August 2026 on the petitioner's prayer. The writ remains pending. ¶ 1-4

FLAG Thin interlocutory bundle of nine listing/adjournment orders (31.7.2024, 13.9.2024, 21.10.2024, 28.11.2024, 2.12.2024, 19.12.2024, 27.2.2025, 10.11.2025, 27.7.2026). Numbered paras 1-4 are of the 21.10.2024 order. Clause 4.49 is named only in the 13.9.2024 listing order; no construction.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CONSTRUCTION AND APPLICATION OF CLAUSE 4.49 OF THE ELECTRICITY SUPPLY CODE, 2005

Liberty was granted on 13.9.2024 to place judgments on Clause 4.49; the clause was not construed. ¶ 1-4

NOT DECIDED — MERITS OF THE WRIT AGAINST DAKSHINANCHAL VIDYUT VITRAN NIGAM LIMITED

Only listing, pleadings, and adjournments; no relief granted or refused. ¶ 1-4

